LLOYD SANGIWEYINKOSI SIBANDA

Versus

MINUNGU SIBANDA

AND

NAOMI JABULILE MKANDLA

AND

LOT SIBANDA

AND

THE REGISTRAR OF DEEDS

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 20 NOVEMBER AND 1 DECEMBER 2025

Opposed Application

G. *R. J. Sithole with G. Mapaya*, for the applicant
M. Ndlovu, for the 1st and 2nd respondents
No appearance for the 3rd and 4th respondents

KABASA J: This is an application in which the applicant seeks the cancellation of a sale agreement. The order sought is couched as follows:-

> "1. The Agreement of Sale dated 5 September entered in between Lot Sibanda and Lloyd Sangiweyinkosi Sibanda (as sellers) and Naomi Jabulile Mkandla and Minungu Sibanda dated 05 September 2017 in Bulawayo in respect of certain piece of immovable property being residential stands 52 and 54 of Matsheumhlope together with improvements thereon, held under Deed of Transfer 3552/2002 dated 24th of October 2002, measuring 4049 square metres be and is hereby cancelled.
>
> 2. The 1st to 3rd respondents be and is hereby ordered to pay costs on a legal practitioner-client scale jointly and severally with the one paying the other to be absolved."

BACKGROUND

The applicant co-owned the afore-mentioned property with his father, the 3rd respondent. The property was sold to the 1st and 2nd respondents and the Agreement of Sale was reduced to writing and duly signed by the purported sellers and the buyers. The applicant contends that he did not know of the sale, the signature appearing on the agreement is not his and was therefore forged. He was not in Zimbabwe on the date reflected on the Agreement of Sale as he was in Canada. He was not aware of the set-off which was alluded to in the agreement as he was never indebted to the 1st and 2nd respondents. He therefore seeks the vacation of the sale agreement.

The application was opposed by the 1st and 2nd respondents. The 3rd and 4th respondents did not file any papers, an indication of their willingness to abide by the court's decision.

In opposing the application the 1st and 2nd respondents took points *in limine*. I do not intend to go into them as it was my considered view that they were not points *in limine* to be argued as such but had a bearing on the merits and so to be argued with the merits. Counsel for the respondents appeared to agree with this observation.

The respondents contended that the applicant was represented by his father '3rd respondent' to whom he gave a Special Power of Attorney. The 3rd respondent therefore concluded the sale agreement and signed on his behalf and on behalf of the applicant. The issue of the Special Power of Attorney, which the applicant conveniently decided not to divulge, was raised in an earlier application wherein the applicant was seeking to place a caveat on the same property. That matter was filed in Harare and in opposing it the respondents made reference to the Special Power of Attorney to which the applicant chose not to respond to before filing the present application in Bulawayo. There was no fraud and if there is the possibility of such, then such fraud is sought to be perpetrated against the respondents who bought the property and have paid the full purchase price. The 3rd respondent had earlier on, in 2013 sold the same property, and represented the applicant who was by then a minor. An amount of US$76 000 was duly paid as deposit but the sale was aborted due to the 3rd respondent's lack of co-operation. The US$76 000 was to be refunded and the 3rd respondent signed an acknowledgement of debt to that effect. He subsequently failed to pay the amount and summons were issued against him. This culminated in the parties entering into the Agreement

of Sale which the applicant now seeks to have set aside. The US$76 000 was allowed to stand as the deposit and the balance of US$69 750 was paid in instalments.

The respondents then counter-claimed for the transfer of the property into their names and costs of suit at a punitive scale.

Issues

The issues presented in this case are: -

1. Whether there was a valid Agreement of Sale between the applicant and the 3rd respondent as sellers and the 1st and 2nd respondents as buyers? If not, whether the applicant is entitled to the relief he seeks.

2. Whether the 1st and 2nd respondents are entitled to transfer of the property.

Applicant's Case

Counsel for the applicant submitted that the applicant is a co-owner of the property and therefore has an interest in the matter. The applicant was not aware of the sale agreement and never gave his father authority to act on his behalf. He was not in Zimbabwe. In response to a question posed by the court, counsel explained that the applicant did not give his father Power of Attorney and that is the gravamen of his case. Should the court be persuaded the counter-application seeking transfer ought to be dismissed. Quizzed as to why that was not mentioned in the founding affidavit, counsel pleaded with the court to refer the matter to trial as the issue raised a dispute of fact incapable of resolution on the papers.

In the heads of argument which counsel intimated he was standing by, it was contended that since the agreement was a product of fraud, nothing could stand from it. It was *void ab initio* and once it is void *ab initio* everything that seeks to stand on it has nothing to stand on (*Macfoy* v *United Africa Company Ltd* 3 ALL ER 1169).

Reliance was also placed on the decision in *Masiya* v *Chikunguwo & Ors* HH 696-22 to the effect that the court cannot enforce an illegal agreement.

The applicant revoked the Power of Attorney and once so revoked the 3rd respondent could not act on that which he no longer had. (*Koch* v *Mair* (1984) 11 SC 74. The revocation occurred over a telephone call which applicant made to 3rd respondent and communicated eight

months prior to the conclusion of the sale agreement. The initial agreement of 2013 was at a time when he was a minor and the High Court as upper guardian of minors had not authorised such sale. (*Mutero* v *Mutero & Ors* HH 548-16).

Consequently the counter-claim cannot succeed as the Agreement of Sale stands to be vacated, so went applicant's argument.

1st and 2nd Respondents' case

Counsel for the respondents submitted that the applicant was aware of the Power of Attorney issue from the earlier proceedings when he sought to place a caveat on the property. He deliberately did not make his case on that issue. His case stands or falls on the founding affidavit and cannot seek to declare a material dispute of facts when he was aware of the Power of Attorney issue and chose not to mention it.

There is nothing to show that such Power of attorney was revoked and if it was when such revocation occurred.

By choosing to proceed by way of motion proceedings the applicant cannot now seek to have the matter referred to trial. The cause of action as reflected in the founding affidavit made no mention of the Power of Attorney revocation. It is to the founding affidavit that a respondent must look in order to know what case he/she has to meet (*Mangwiza* v *Ziumbe N.O & Anor* 2000 (2) ZLR 489).

The applicant was being dishonest by failing to disclose facts which would assist the court in determining the matter (*Jonga* v *Chabata & Anor* (HH 276 of 2017, HC 2719 of 2017 [2017] ZW HHC 276 (03 May 2017).

The court ought to frown upon such material non-disclosure (*Anabas Services (Pvt) Ltd* v *Minister of Health & Ors* HB 88-03)

Counsel further submitted that the founding affidavit sets out the applicant's case. The facts therefore as reflected in the founding affidavit are what the matter is to be decided on as that is the applicant's case. (*Austerlands (Pvt) Ltd* v *Trade & Investment Bank Limited & Ors* (S 92-05).

The applicant did not need to be physically present after he gave the 3rd respondent a Power of Attorney. The fact that he was in Canada is therefore neither here nor there.

The respondents counter-claimed for the transfer of the property. The respondents purchased the property, paid for it and are therefore entitled to transfer so as to translate the personal rights they obtained at purchase to real rights which stems from transfer of the property into their names.

Application of the law to the facts

The applicant's cause of action is to be found in the founding affidavit. (See *Austerlands (Pvt) Ltd v Trade & Investment Bank Limited & Ors* (supra) Counsel for the applicant correctly stated that the gravamen of applicant's case rests in his assertion that he did not give his father Power of Authority.

The question to ask is why the applicant found it unnecessary to mention that which made his case in the founding affidavit? He was aware from the earlier proceedings where he was seeking to place a caveat on the property that the crux of the matter revolved around the Power of Attorney. The Power of Attorney was given when he was no longer a minor and after the 2013 sale agreement was cancelled. There should therefore be no reference to the 2013 agreement which he contends was concluded when he was still a minor. When it was cancelled it marked the end of such contract. On 30 January 2017 whilst in Canada, he had a Special Power of Attorney drawn up, notarised and in it specifically mentioned that the 3rd respondent was to have power and act as agent for the sole purpose of selling, attending any meeting or interview and signing all documents necessary for the transfer of No. 58 Napier Avenue, Hillside, situate in the district of Bulawayo.

The 3rd respondent signed the Agreement of Sale. The applicant is bound by the actions of the 3rd respondent to whom he gave the Power and Authority to act on his behalf (*Maye Serobe (Pty)Ltd* v *LEWUSA obo Members & Ors* (J 2377/12) [2015] ZALCJHB 116 (9 April 2015).

The lack of probity on the applicant's part is demonstrated, not only in his failure to mention the supposed revocation of the Power of Attorney until the respondents forced him to, after raising it in their opposition, but it is also evident in the attempt to seek a referral of the

matter to trial in order to ventilate the Power of Attorney revocation claim which cannot be resolved on the papers.

I must express some disquiet over such disingenuous conduct. Why proceed by motion proceedings well knowing that the Power of Attorney issue required ventilation through action proceedings? In the earlier proceedings the respondents specifically mentioned that if the power of attorney was in issue the matter would have to be resolved through action proceedings. That, notwithstanding, the applicant proceeded to file the present application, omitted to mention the power of attorney but now turns around and asks that the matter be referred to trial.

If the applicant had the presence of mind to give his father a Special Power of Attorney meant to dispose of such a valuable asset, why did it not occur to him to equally formally revoke such Power of Attorney? Surely the Power of Attorney must have been informed by the decision by father and son to sell the property in question. The Agreement of Sale was only concluded on 5 September 2017 and there is absolutely nothing which speaks to the revocation of the Power of Attorney.

The parties were legally represented and the correspondence filed of record establishes that the purchase price was paid in full. The legal practitioners who were acting on behalf of the applicant's father could have deposed to a supporting affidavit if there was any truth in the applicant's story but this was strangely not deemed necessary.

To further compound the applicant's woes, the counter-application, contrary to applicant's counsel's submissions, was filed simultaneously with the notice of opposition and r 58(8) of the High Court rules, 2021 provide that:-

> "Where a respondent files a notice of opposition and opposing affidavit, he or she may file, together with those documents, a counter application against the applicant in the form, with the necessary changes, of a court application or chamber application, whichever is appropriate ," and r 58(9) states:-
>
> "(9) This rule shall apply, with necessary changes, to a counter application under subrule (8) as though it were a court application or a chamber application, as the case may be, and subject to subrules (10) and (11) it shall be dealt with at the same time as the principal application unless the court or a Judge orders otherwise."

The applicant did not file opposing papers to the counter application and when the court posed this question to *Mr Mapaya*, who had earlier appeared in order to seek a postponement,

counsel responded that the opposition was in an answering affidavit. What opposition is contained in an answering affidavit? An answering affidavit answers to an opposing affidavit and such answering affidavit would have been from the respondents in response to the opposition to the counter claim.

Mr Sithole, counsel for the applicant's belated submission that there was no counter-application because it was not filed in terms of the rules lacks support from the filed papers. To the contrary it is the applicant who did not file opposing papers to the counter application. That in itself is telling. It was just a continuation of conduct premised more out of desperation to resile from a binding agreement than a genuine arguable case.

The paper trail therefore shows a Power of Attorney given to 3rd respondent, a Sale Agreement concluded between the giver of the Power of Attorney his father and the 1st and 2nd respondents as the buyers. A record of payment of the full purchase price and absolutely nothing to show a failure on the part of the respondents to adhere to the terms of the contract. One is entitled to specific performance when they have performed their end of the contractual obligations. (*Wilbert* v *Steenkemp* 1917 AD 493).

In *Manengureni* v *Kakomo & 2 Ors* HH 489-20 the court had this to say:-

> "An order for specific performance enables the innocent party to compel performance of the terms of the contract upon breach. There must be a binding contract in existence and a breach of the terms of the contract. Courts will not order specific performance where there is substantial and material breach of the contract by the party seeking enforcement of the contract."

There was no breach on the part of the respondents. The breach occurred on the applicant and 3rd respondent's part who have failed to pass transfer to buyers who have met their obligations under the contract.

An order for specific performance is at the discretion of the court (*Benson* v *South Africa Mutual Life Assurance Society* 1986 (1) SA 776 (A).

The full purchase price was paid in 2019 and the 1st and 2nd respondents are currently in occupation of this property.

I find no cogent reason to deny them the relief they seek, a relief that has been long awaited and deserved.

Disposition

Sellers of property ought not to try and resile from sale agreements just because, with the passage of time, the decision to sell has proved not to be wise or beneficial.

The applicant has unnecessarily put the 1st and 2nd respondents out of pocket. His lack of probity ought to be frowned upon and justifies censure from the court.

Costs are indeed at the discretion of the court and I find that the applicant's lack of probity deserving of censure. (*Kadira NO v Nhemwa NO & Ors* HH97-23, *Mutunhu V Crest Poultry Group (Pvt) Ltd* HH399-17)

With that said, as regards the main application, I make the following order: -

1. The application for the cancellation of the Agreement of Sale be and is hereby dismissed, with costs on attorney-client scale.

2. The counter-application be and is hereby granted, with costs at attorney-client scale.

3. The applicant and 3rd respondent be and are hereby ordered to sign all papers necessary to effect transfer of their right, title and interest in the immovable property known as Stands 52 and 54 Matsheumhlope held under title deed number 3552/2002 also known as 58 Napier Avenue, Hillside, Bulawayo, within 10 days of this order, into the first and second respondents' names.

4. Failing compliance with paragraph 3, the Sheriff of the High Court of Zimbabwe be and is hereby authorised to sign all such papers to effect transfer of the said property into the names of Minungu Sibanda and Naomi Jabulile Sibanda nee Mkandla.

Mapaya & Partners, applicant's legal practitioners
Ndlovu Mehluli and Partners, 1st respondent's legal practitioners